



Unit 3 · Outcome 1 · Maintaining Biodiversity

Treaties & legal frameworks

KK13 VCE Environmental Science · Units 3 & 4 · Exam study summary

Key knowledge. 13 Treaties & legal frameworks International National State Local No single law protects a threatened species

Digital Vector EnviroSci · single-topic mastery summary — clean explanations, comparison tables, visual aids, exam traps, command words and worked answers.



THE BIG IDEA

Protection is a ladder, not a single rung

Examiners love the words international, national and local because they test whether you can place an instrument at the right scale. Read this ladder top-to-bottom: as you descend, the geography shrinks (whole planet → one nation → one state → one paddock) but the enforcement bites harder and closer to the ground.

◆ NOTE

The insight that earns marks A treaty signed overseas does not automatically protect anything in Australia. International agreements only "bite" once a domestic law enacts them — and in Australia that domestic law is usually the EPBC Act. So CITES and the World Heritage Convention are enforced through the EPBC Act, not on their own. Stating this connection is the difference between a 2-mark answer and a 4-mark answer.

THE DETAIL

The six instruments, in plain terms

The Convention on International Trade in Endangered Species. It controls the cross-border trade of listed species and their products (ivory, skins, live animals, timber). Species sit in Appendix I (threatened with extinction — commercial trade banned), Appendix II (trade allowed under permit) or Appendix III (a country asks others for help). It governs trade — not habitat, not local management.

The world's most authoritative inventory of conservation status, run by the International Union for Conservation of Nature. It assigns categories from Least Concern up to Critically Endangered and Extinct. Crucially it is an assessment, not legislation — it has no enforcement power of its own, but its categories and criteria are adopted by laws and treaties worldwide (including the EPBC and FFG Acts).

Under UNESCO's World Heritage Convention, sites of outstanding universal value are listed for protection — e.g. the Great Barrier Reef and the Tasmanian Wilderness. Listing brings international recognition and monitoring, but inside Australia the actual legal protection of a World Heritage area is delivered by the EPBC Act.

Australia's principal environmental law. It lists threatened species and ecological communities, defines nine Matters of National Environmental Significance (MNES), and requires that any action likely to have a significant impact on an MNES be referred, assessed and approved. It also drives recovery plans and gives domestic force to CITES, World Heritage and Ramsar.

The Flora and Fauna Guarantee Act — Victoria's key biodiversity law and the first of its kind in Australia. It maintains a Threatened List of species and communities plus a list of potentially threatening processes, and requires Action Statements setting out what will be done. Victoria aligns its listings with the EPBC Act through the national Common Assessment Method.

A voluntary, permanent and legally binding agreement between a landowner and a body such as Trust for Nature (Vic). The covenant is registered on the property title, so it runs with the land — every future owner is bound to protect that habitat. It is how privately owned bushland next to a reserve gets locked in for good.

◆ NOTE

Two pairs that students confuse EPBC = Commonwealth/national; FFG = Victorian/state. And IUCN Red List = an assessment (it ranks risk) while the Acts = laws (they compel action). Getting the jurisdiction and the binding-vs-guidance distinction right is most of the marks in this dot point.

MAKE IT STICK

Two analogies for the exam

Picture matryoshka dolls. The biggest, outermost doll is the international layer (CITES, IUCN, World Heritage). Inside it sits the national doll (EPBC), then the state doll (FFG), then the tiny innermost doll — the covenant on one paddock. Each smaller doll fits inside the larger one, just as state law operates inside the frame set by national and international rules. Open the big doll and you still need the small ones to actually hold the bird.

The IUCN Red List is the engineer's inspection report — it tells you the structure is unsafe but it can't force anyone to fix it. The EPBC and FFG Acts are the building codes — legally binding rules you must obey. A conservation covenant is a permanent clause on the title deed — it binds whoever owns the house next, forever. CITES is the customs rule at the border controlling what leaves the country.

DECODE THE QUESTION

Command-word decoder

◆ COMMAND WORDS

The command word tells you the shape of the answer. Misread it and you lose marks even with correct facts. State the instrument with no explanation. "Name one international instrument that protects threatened species." → CITES. One word can be the full mark. Say what the instrument is and what it does. For EPBC: it is Australia's national environmental law that lists threatened species and requires significant impacts to be assessed. Give a point of difference for both items. EPBC vs FFG → one is Commonwealth/national, the other is Victorian/state. Always address both sides. Show the mechanism and the link. "Explain how an international treaty protects a species in Australia" needs the chain: treaty → enacted via EPBC Act → enforced domestically. Weigh strengths against limitations and reach a judgement. e.g. covenants permanently protect private land but are voluntary, so coverage is patchy. Give a reason that defends your choice. "Why is the EPBC Act central?" → because international treaties have no domestic force until a national law enacts them.

Command word	What the marker wants
Identify / State	Name it — no explanation.
Describe	Give the features / what happens, in order.
Explain	Give the how / why — cause and effect.
Distinguish / Compare	State the difference (and similarity) explicitly.
Analyse	Break into parts and show how they relate.
Evaluate / Justify	Weigh strengths & limits, then a reasoned verdict.

Match your answer to the verb — the fastest marks in the exam.

AVOID THESE

Exam traps that cost real marks

⚠ EXAM TRAPS

It is an assessment of extinction risk with no enforcement power. It informs laws but does not compel anyone. Fix: call it a status assessment / inventory, not legislation. CITES only regulates international trade. It does nothing about land clearing, pollution or local management. Fix: tie CITES strictly to cross-border trade in species and parts. EPBC is Commonwealth (national); FFG is Victorian (state). Swapping them is an instant lost mark. Fix: memorise "EPBC = Australia, FFG = Victoria." Listing is international recognition; the legal protection inside Australia is delivered by the EPBC Act. Fix: name the EPBC Act as the enforcing mechanism. Covenants are voluntary — the owner chooses to enter one. They are permanent and binding once signed, and run with the title. Fix: pair "voluntary" with "permanent / binding on future owners." A bare list of names rarely scores beyond an "identify" mark. "Describe" and "explain" demand the function and, ideally, the scale. Fix: name + role + scale for every instrument you cite.

WRITE LIKE A STATE-RANKER

The P·E·L writing trainer



The P·E·L answer shape — make a Point, support with Evidence, then Link to the question.

🔗 P·E·L WRITING

For "explain" and "evaluate" answers, build each idea as Point · Explain · Link. It forces you past naming an instrument into showing its mechanism and tying it back to the species. "At the national scale, the EPBC Act 1999 protects the Helmeted Honeyeater." "As a listed threatened species it is a Matter of National Environmental Significance, so any action with a significant impact must be referred and assessed." "This legally restricts habitat-destroying development near its remaining swamp forest, slowing its decline." Question (4 marks): Explain how international and national instruments work together to protect a threatened Australian species. There are lots of laws that protect animals. CITES is one and the EPBC Act is another. They both help stop animals going extinct by making rules about them.

• NOTE

Names two instruments (1 mark) but never says what either does, never distinguishes their scales, and never shows how they "work together." No mechanism = no explanation marks.

🔗 P·E·L WRITING

CITES is an international treaty that regulates cross-border trade in endangered species, but a treaty has no legal force in Australia on its own. It is given effect domestically through the EPBC Act 1999 (Cth), our national environmental law. The EPBC Act lists threatened species as Matters of National Environmental Significance and requires any action with a significant impact to be assessed and approved. So the international treaty sets the obligation and the national law enforces it — together they block both illegal export and habitat-destroying development.

- **NOTE**

Scale + function for each (CITES = international/trade; EPBC = national/law), then the crucial "treaty enacted through national law" link, then a consequence. Four distinct mark-earning ideas.

EXAM PRACTICE · SELF-MARKED

Five VCAA-style questions

- ★ **PRACTICE & SELF-MARK**

Attempt each in your logbook first, then reveal the marking guide and model answer. Award yourself marks honestly — the dock bottom-right tracks your total out of 20.

- 1 mark — two correct international instruments
- 1 mark — the FFG Act 1988 (Vic) correctly named as the Victorian instrument
- 1 mark — Red List as a non-binding assessment of extinction risk
- 1 mark — EPBC Act as a binding national law that lists/protects species
- 1 mark — explicit point of difference (assessment vs enforcement)
- 1 mark — voluntary agreement with a conservation body
- 1 mark — legally binding restriction on land use to protect habitat
- 1 mark — registered on the title / runs with the land
- 1 mark — therefore binds future owners → permanent protection
- 1 mark — CITES only covers international trade
- 1 mark — domestic threats (habitat loss etc.) are not addressed by trade rules
- 1 mark — a treaty has no force domestically until enacted
- 1 mark — names the EPBC Act 1999 as the enacting instrument
- 1 mark — EPBC adds habitat protection / assessment of significant impacts
- 1–2 marks — correctly maps instruments to all four scales for the species
- 1–2 marks — strengths, esp. how overlapping layers close each other's gaps
- 1 mark — at least one genuine limitation (voluntary covenants / funding / enforcement)
- 1 mark — a clear evaluative judgement that weighs both sides

ONE-SCREEN RECAP

The KK13 cheat sheet

- **NOTE**

Digital Vector · VCE Environmental Science Units 3 & 4 · U3·O1 KK13 — Treaties & legal frameworks · Australian English · offline single-file build

UNIT 3 · OUTCOME 1 · KEY KNOWLEDGE 13

Treaties & legal frameworks

No single law protects a threatened species. Instead, protection is built in layers — a global treaty on top of a national act on top of a state act on top of a covenant on one family's paddock. This dot point is about knowing which instrument operates at which scale, what each one actually does, and which ones carry the force of law.

The VCAA dot point names six instruments you must be able to describe: CITES, the IUCN Red List, classified World Heritage areas, the EPBC Act 1999 (Cth), the FFG Act 1988 (Vic), and local-government conservation covenants.

◆ NOTE

The running scenario Across this chapter we follow the Helmeted Honeyeater at Kestrel Ridge Reserve. The honeyeater is a real, perfect worked example: it is Victoria's bird emblem, it survives in a sliver of swamp forest, and it is simultaneously protected by an international trade convention, a national act, a state act, and covenants on neighbouring private land. One bird, four scales of law — the whole dot point in a single animal.

EXAM TECHNIQUE

★ Worked answers — weak vs strong

The same question answered two ways. The strong column shows the moves that earn the marks.



The P-E-L answer shape — make a Point, support with Evidence, then Link to the question.

✗ WEAK ANSWER

There are lots of laws that protect animals. CITES is one and the EPBC Act is another. They both help stop animals going extinct by making rules about them. Names two instruments (1 mark) but never says what either does, never distinguishes their scales, and never shows how they "work together." No mechanism = no explanation marks.

✓ STRONG / MODEL ANSWER

CITES is an international treaty that regulates cross-border trade in endangered species, but a treaty has no legal force in Australia on its own. It is given effect domestically through the EPBC Act 1999 (Cth), our national environmental law. The EPBC Act lists threatened species as Matters of National Environmental Significance and requires any action with a significant impact to be assessed and approved. So the international treaty sets the obligation and the national law enforces it — together they block both illegal export and habitat-destroying development. Scale + function for each (CITES = international/trade; EPBC = national/law), then the crucial "treaty enacte